2005223033

BY COMMISSIONER_____ RESOLUTION NO. 05-334

14

WESLEY CHAPEL LAKES DEVELOPMENT ORDER AMENDMENT
DEVELOPMENT OF REGIONAL IMPACT
SUBSTANTIAL DEVIATION DETERMINATION

RESOLUTION AMENDING RESOLUTION NO. 90-55, AS AMENDED, TO APPROVE REVISIONS TO THE DEVELOPMENT ORDER FOR THE WESLEY CHAPEL LAKES DEVELOPMENT OF REGIONAL IMPACT AND DETERMINING THAT THE PROPOSED CHANGE DOES NOT CONSTITUTE A SUBSTANTIAL DEVIATION TO THE APPROVED DEVELOPMENT ORDER.

WHEREAS, on December 19, 1989, the Board of County Commissioners of Pasco County (the "Commission") adopted a Development of Regional Impact Development Order approving, with conditions, the Wesley Chapel Lakes Development of Regional Impact by Resolution No. 90-55 (as amended, the "Development Order"); and

WHEREAS, the Development Order was amended by the Commission by Resolution No. 91-252, dated May 14, 1991; by Resolution No. 93-192, dated April 13, 1993; by Resolution No. 00-37, dated November 16, 1999; by Resolution No. 03-36, dated November 19, 2002; by Resolution No. 05-277, dated July 26, 2005; and

Rcpt: 934776 Rec: 137.50
DS: 0.00 IT: 0.00
10/20/05 _____ Dpty Clerk

WHEREAS, on May 6, 2005, Wesley Chapel Lakes, Ltd., Clearwater Bay Associates Inc., Meadow Pointe General Partnership, and Pasco Heights Development Corporation (collectively "Developer") filed a Notification Of A Proposed Change To A Previously Approved Development of Regional Impact ("NOPC"), pursuant to Section 380.06(19), Florida Statutes, as subsequently amended by Developer on June 30, 2005 and August 16, 2005, requesting the following: 1) amend the Master Development Plan, Map H to revise the locations of school and district park sites, delete the golf course, show approved wetland jurisdictional areas, show detailed unit mix, and update acreage table; 2) delete Section E.2(e) regarding golf course guidelines; 3) amend Section E.12 to reflect revisions to district park site; 4) amend Section E.13 to identify the agreed upon school site and repeat the approved zoning conditions regarding its dedication; and 5) delete Section E.16.f to eliminate the requirement of 1,000 elder person units and convert the 1,000 elder person units to 1,000 townhome units (collectively, the "Proposed Changes");

WHEREAS, the Board wishes at this time to 1) amend the Master Development Plan, Map H to revise the locations of school and district park sites, delete the golf course, show approved wetland jurisdictional areas, show detailed unit mix, and update acreage table; 2) delete Section E.2(e) regarding golf course guidelines; 3) amend Section E.12 to reflect revisions to district park site; and 4) delete Section E.16.f to eliminate the requirement of 1,000 elder person units and convert the 1,000 elder person units to 1,000 townhome units (collectively the "Revised

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JED PITTMAN, PASCO COUNTY CLERK
10/20/05 10:10am 1 of 16
OR BK 6651 PG 466

Proposed Change"), and consider at a future date the other Proposed Change requested in NOPC.

WHEREAS, the Commission, as the governing body of the local government having jurisdiction pursuant to Chapter 380, Florida Statutes, is authorized and empowered to consider amendments to DRIs; and

WHEREAS, the Commission has reviewed the NOPC, as well as all related testimony and evidence submitted by each party and members of the general public.

NOW, THEREFORE, BE IT RESOLVED by the Commission in regular session duly assembled this _____ day of _____, 2005, that:

1. Introduction. This Resolution shall constitute an amendment to the Development Order.

2. General Findings of Fact. The Board of County Commissioners makes the following general Findings of Fact:

   a. The Development Order is a valid final development order within the provisions of Section 163.3167(8), Florida Statutes, affecting the property described on Exhibit "A" attached hereto and incorporated herein.

   b. The Revised Proposed Change to the Development Order will 1) amend the Master Development Plan, Map H to revise the locations of school and district park sites, delete the golf course, show approved wetland jurisdictional areas, show detailed unit mix, and update acreage table; 2) delete Section E.2(e) regarding golf course guidelines; 3) amend Section E.12 to reflect revisions to district park site condition; and 4) delete Section E.16.f to eliminate the requirement of 1,000 elder person units and convert the 1,000 elder person units to 1,000 townhome units .

   c. The Revised Proposed Change to the Development Order is presumed to create a substantial deviation pursuant to Section 380.06(19)e.3., F.S.,

   d. The Developer has submitted clear and convincing evidence to rebut the presumption that the Revised Proposed Change to the Development Order is a substantial deviation.

   e. The Board of County Commissioners scheduled and held a public hearing on the Revised Proposed Change to the Development Order on September 27, 2005.

   f. Notice of the hearing has been published in a newspaper of general

circulation prior to the date set for the Board of County Commissioners hearing.

g. At the public hearing, all parties were afforded the opportunity to present evidence and argument on all issues, and submit rebuttal evidence.

h. Additionally, at the public hearings, any member of the general public requesting to do so was given the opportunity to present written or oral communications.

i. The Board of County Commissioners has received and considered various reports and information including, but not limited to, the recommendation of the Pasco County Growth Management Department and the Pasco County Development Review Committee (DRC).

3. Conclusions of Law The Board of County Commissioners hereby finds as follows:

a. This Revised Proposed Change to the Development Order will not unreasonably interfere with the achievement of the objectives of the State Land Development Plan applicable to the area encompassed by the Development Order.

b. As conditioned, this Revised Proposed Change to the Development Order is consistent with the applicable provisions of the adopted Pasco County Land Development Code (local land development regulations).

c. As conditioned, this Revised Proposed Change to the Development Order is consistent with the applicable provisions of the adopted Pasco County Comprehensive Plan (the Comprehensive Plan).

d. As conditioned, this Revised Proposed Change to the Development Order is consistent with the applicable provisions of the adopted State Comprehensive Plan.

e. The land that is the subject of this Revised Proposed Change to the Development Order is not in an Area of Critical State Concern.

f. These proceedings have been duly conducted pursuant to applicable law and regulations, and based upon the record and these proceedings, the various departments of the County, and Developer are authorized to approve/conduct development as described herein.

g. The review by the County, the Tampa Bay Regional Planning Council

(TBRPC), other participating agencies, and interested citizens reveals that impacts are adequately addressed pursuant to the requirements of Chapter 380, F.S.

h. Nothing herein shall limit or modify the rights originally approved by the Development Order under Section 163.3167(8), F.S..

i. The Revised Proposed Change is not a substantial deviation pursuant to Section 380.06(19), F.S.

4. Order. Having made the above findings of fact and drawn the above conclusions of law, it is ordered that the Development Order and Map-H are hereby amended as follows:

a. Master Development Plan, Map H (Exhibit "B") is hereby amended to revise the locations of school and district park sites; delete the golf course; show approved wetland jurisdictional areas; show detailed unit mix; and update acreage table.

b. Section E.2.e. is hereby deleted in its entirety.

c. Section E 12 is hereby deleted and replaced with the following:

12. Parks and Recreation

a. The Owner/Developer shall convey to the County a District Park Site comprising a minimum of 50 contiguous, developable, upland acres on the north side of future State Road 56 in a location acceptable to Pasco County. Of the 50 upland acres, 45.23 acres shall be eligible for credits against the land portion of the parks and recreation impact fee, subject to the requirements of the Parks and Recreation Impact Fee Ordinance. For purposes of parks and recreation impact fee credits, the acreage dedicated shall be valued at Seventeen Thousand and 00/100 Dollars ($17,000) per upland acre. The County agrees to pay the Developer $17,000 per upland acre for the remaining 4.77 acres of uplands within thirty (30) days of an acceptable conveyance. The Owner/Developer, at its sole expense, shall permit and complete all wetland mitigation to obtain fifty (50) contiguous, developable, upland acres and shall

convey such acreage no later than 18 months (March 27, 2007) from the Board approval date (September 27, 2005) of this NOPC. All conveyances shall be in accordance with Pasco County Real Estate Division requirements, free and clear of all liens, excluded from the boundaries of all special districts, and exempt from covenants and deed restrictions.

b. The County agrees that compliance with the requirements of this Section E.12. fully satisfy the obligations of the Project to provide or contribute district park lands under current and future Pasco County ordinances regarding such obligations. However, these requirements shall not affect any obligations of the Project relating to neighborhood parks, or any obligation of the Project to pay applicable Parks and Recreation impact fees if no credit is available pursuant to this Section E.12 and the Parks and Recreation Impact Fee Ordinance.

c. The Owner/Developer shall design and construct two (2) lanes (2-way) of frontage road from the eastern boundary of the MPUD/DRI to Meadow Pointe Boulevard to allow access to the district park site from Meadow Pointe Boulevard. The frontage road shall be located within the right-of-way for S.R. 56 for that portion of the common boundary between the district park site and the right-of-way for S.R. 56, unless the County Parks and Recreation Department agrees to allow the frontage road within the district park land. The frontage road shall be designed and constructed as a reverse frontage road outside of the S.R. 56 right-of-way as it approaches Meadow Pointe Boulevard in accordance with FDOT and County access management requirements, and the reverse frontage road portion of the road shall be located on the retail site at the northeast corner of Meadow Pointe Boulevard and S.R. 56 (the "Retail Parcel"). The portion of the frontage road located

within the right-of-way for S.R. 56 shall be designed in accordance with roadway sections which are mutually agreeable to the developer, FDOT and the County. Any portion of the frontage road which is located outside of the right-of-way for S.R. 56 shall be designed and constructed to include a minimum 24-foot wide paved section with two (2) 12-foot wide (2-way) travel lanes. Such design and construction shall be completed or bonded by the Owner/Developer prior to or concurrent with the issuance of the first building permit within the Retail Parcel in Wesley Chapel Lakes DRI or in the Wyndfields MPUD adjacent to the east end of the district park site and S.R. 56, or completed prior to December 31, 2010, whichever occurs sooner.

d. Section E.16.f is hereby deleted in its entirety.

5. Notice of Adoption

a. A Notice of Adoption of this resolution shall be filed and recorded in the Public Records of Pasco County, Florida, in accordance with Section 380.06(14)(a), F.S., as amended.

b. The Clerk of the Board of County Commissioners shall return five (5) signed and certified copies of this DO and the Notice of Adoption, and one executed Notice of Adoption to the Pasco County Growth Management Department. The Pasco County Growth Management Department shall then send copies of each document to the FDCA, TBRPC, and to attorneys of record in these proceedings.

c. The DO shall be deemed rendered upon transmittal of copies to all recipients identified in Chapter 380, F.S.

6. Severability

If any section, subsection, sentence, clause, or provision of this resolution is held invalid, the remainder of the resolution shall be construed as not having contained the section, subsection, sentence, clause, or provision, and shall not be affected by such holding.

7. Effective Date. This Resolution shall take effect when rendered in accordance

with Section 380.06, F.S.

DONE AND RESOLVED THIS 27th DAY OF Sept, 2005.

(SEAL)

ATTEST:
By: _____
JED PITTMAN, CLERK

BOARD OF COUNTY COMMISSIONERS
OF PASCO COUNTY, FLORIDA

By: _____
CHAIRMAN

APPROVED
SEP 27 2005

APPROVED AS TO LEGAL FORM AND CONTENT
Office of the County Attorney

By: _____
Attorney

EXHIBITS

A. Legal Description

B. Map-H

EXHIBIT A

Legal Description

'MEMO-LEGIBILITY OF WRITING, TYPING OR PRINTING UNSATISFACTORY IN THIS DOCUMENT.'

Legal Description

A portion of Section 10; a portion of Section 15; a portion of Section 22; the West 780.00 feet of Section 26; Section 27 less the North 815.00 feet of the West 270.00 feet thereof; the West 780.00 feet of Section 35; that portion of Section 34 lying North of the Northerly right-of-way line of Strickland Road and a portion of the Southeast 1/4 of Section 33, all lying in Township 26 South, Range 20 East, Pasco County, Florida being further described as follows:

Commence at the Northeast corner of said Section 27, also being the Northwest corner of said Section 26 for a point of beginning; thence run north 89°55'06" west, 1833.08 feet along the North boundary line of said Section 27, also being the South boundary line of Fox Ridge-Plat one as shown on Plat recorded in Plat Book 15, Pages 118 through 128 inclusive and the South boundary line of Fox Ridge-Phase two unit two as shown on Plat recorded in Plat Book 19, Pages 36 through 41 inclusive of the public records of Pasco County, Florida; thence North 00°00'22" East, 917.55 feet along the Westerly boundary line of said Fox Ridge Phase Two, Unit Two: thence South 89°59'38" East, 261.58 feet along said Westerly boundary line; thence North 00°00'22" East, 60.00 feet along said Westerly boundary line: thence North 89°59'38" West, 148.67 feet along said Westerly boundary line; thence North 00°00'22" East, 581.00 feet along said Westerly boundary line; thence South 89°59'38" East, 148.67 feet along said Westerly boundary line; thence North 00°00'22" East, 60.00 feet along said Westerly boundary line; thence North 89°59'38" West, 125.45 feet along said Westerly boundary line; thence North 00°00'22" East, 581.00 feet along said Westerly boundary line; thence South 89°59'38" East, 125.45 feet along said Westerly boundary line; thence North 00°00'22" East, 60.00 feet along said Westerly boundary line; thence North 89°59'38" West, 125.45 feet along said Westerly boundary line; thence North 00°00'22" East, 290.50 feet along said Westerly boundary line; thence North 89°59'38" West, 150.00 feet along said Westerly boundary line; thence North 00°00'22" East, 450.00 feet along said Westerly boundary line; thence North 02°34'00" East, 163.79 feet along said Westerly boundary line; thence North 07°03'20" West, 139.09 feet along said Westerly boundary line; thence North 19°22'38" West, 118.30 feet along said Westerly boundary line; thence 41.32 feet along the arc of a curve concaved to the left along said Westerly boundary line, having a radius of 62.50 feet, a chord of 40.57 feet bearing North 38°30'17.9" East; thence 22.28 feet along the arc of a curve concaved to the right along said Westerly boundary line, having a radius of 25.00 feet, a chord of 21.55 feet bearing North 45°05'42.5" East, thence North 70°37'22" East, 221.95 feet along said Westerly boundary line; thence North 19°22'38" West, 60.00 feet along said Westerly boundary line; thence South 70°37'22" West, 221.95 feet along said Westerly boundary line; thence 22.28 feet along the arc of a curve concave to the right along said

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Westerly boundary line, having a radius of 25.00 feet; a chord of 21.55 feet bearing North 83°50'58.8" West; thence 30.41 feet along the arc of a curve concaved to the left, along said Westerly boundary line, having a radius of 62.50 feet, a chord of 30.11 feet bearing North 72°15'37.1" West; thence North 19°22'38" West, 446.82 feet along said Westerly boundary line; thence North 70°37'22" East, 265.40 feet along said Westerly boundary line; thence North 19°22'38" West, 60.00 feet along said Westerly boundary line; thence South 70°37'22" West, 125.56 feet along said Westerly boundary line; thence North 19°22'38" West, 333.79 feet along said Westerly boundary line; thence North 71°20'47" East, 265.19 feet along said Westerly boundary line; thence North 19°22'38" West, 382.90 feet along said Westerly boundary line; thence 156.92 feet along the arc of a curve concaved to the left along said Westerly boundary line, having a radius of 920.00 feet, a chord of 156.73 feet bearing north 75°30'33.1" East; thence North 70°37'22" East, 157.12 feet along said Westerly boundary line; thence North 19°22'38" West, 60.00 feet along said Westerly boundary line; thence South 70°37'22" West, 138.34 feet along said Westerly boundary line; thence North 00°20'59" East, 238.36 feet along said Westerly boundary line; thence South 77°04'41" West, 1159.01 feet along the Southerly boundary line of Fox Ridge Phase Two Unit Four as shown on Plat recorded in Plat Book 19, Pages 113, 114, and 115 of the Public Records of Pasco County, Florida; thence South 19°22'38" East, 159.35 feet along aforesaid Southerly boundary line; thence North 89°39'01" West, 190.00 feet along aforesaid Southerly boundary line; thence South 07°52'46" East, 264.78 feet along aforesaid Southerly boundary line; thence South 70°37'22" West, 155.00 feet along aforesaid Southerly boundary line; thence 39.27 feet along the arc of a curve concaved to the right, along aforesaid Southerly boundary line; having a radius of 25.00 feet, a chord of 35.36 feet bearing North 64°22'38.1" West; thence South 70°37'22" West, 60.00 feet along aforesaid Southerly boundary line; thence 39.27 feet along the arc of a curve concaved to the right along aforesaid southerly boundary line, having a radius of 25.00 feet, a chord of 35.36 feet bearing South 25°37'22" West; thence South 70°37'22" West, 173.30 feet along aforesaid Southerly boundary line; thence 141.39 feet along the arc of curve concaved to the right along aforesaid Southerly boundary line, having a radius of 417.94 feet, a chord of 140.72 feet bearing South 80°18'52" West; thence North 00°00'22" East, 978.91 feet along the West boundary line of said Fox Ridge Phase Two Unit Four; thence North 00°20'59" East, 3962.43 feet along aforesaid West boundary line and its North extension, also being the West boundary line of Fox Ridge Phase Two Unit Three and its North and South extension as shown on Plat recorded in Plat Book 19, Pages 42 through 45 inclusive of the public records of Pasco County, Florida; thence North 89°32'44" East, 1280.00 feet; thence North 00°23'46" East, 504.21 feet along the West boundary line of Fox Ridge Phase Two Unit one as shown on Plat recorded in Plat Book 18, pages 61 through 64 inclusive of the public records of Pasco County, Florida; thence South 89°29'04" West, 497.71 feet;

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thence North 00°23'46" East, 1433.31 feet to a point on the Southerly right-of-way line of County Road No. 54 as now established; thence North 64°23'47" West, 1331.53 feet along said southerly right-of-way line; thence South 00°03'51" West, 1200.29 feet; thence South 00°26'12" West, 1321.74 feet along the approximate maintained centerline of Smith Road and its South extension is now established; thence South 89°31'38 West, 167.88 feet; thence South 57°42'55" West, 337.80 feet; thence South 62°34'40" West, 929.92 feet; thence South 19°39'09" West, 177.19 feet to a point on the West boundary line of said Section 15; thence South 00°23'19" West, 3192.61 feet along the West boundary line of said Section 15 to the Southwest corner of said Section 15, also being the Northwest corner of said Section 22; thence South 00°03'23" West, 3678.07 feet along the West boundary line of said Section 22; thence South 89°55'06" East, 270.00 feet; thence South 00°03'23" West, 1600.00 feet parallel to the West boundary line of said Section 22; thence South 00°15'55" West, 815.00 feet parallel to the West boundary line of said Section 27; thence North 89°55'06" west, 270.00 feet to a point on the West boundary line of said Section 27; thence South 00°15'55" West, 4472.16 feet along the West boundary line of said Section 27 to the Southwest corner of said Section 27, also being the Northwest corner of Section 34; thence South 00°10'16.5" West, 3969.28 feet along the West boundary line of said Section 34 also the East boundary line of said Section 33; thence North 89°53'20" West, 1340.04 feet; thence South 00°10'00" West, 1264.47 feet to a point on the Northerly right-of-way line of Strickland Road as now established; thence North 73°44'23" East, 185.90 feet along said Northerly right-of-way line; thence North 84°27'34" East, 68.25 feet along said Northerly right-of-way line; thence South 74°53'42" East, 466.42 feet along said Northerly right-of-way line; thence North 89°58'16" East, 502.09 feet along said Northerly right-of-way line, also being the South boundary line of said Section 33; thence North 63°12'07" East, 1182.47 feet along said Northerly right-of-way line; thence North 87°58'49" East, 1413.82 feet along said Northerly right-of-way line; thence South 76°37'16" East, 2500.05 feet along said Northerly right-of-way line to a point on the South boundary line of the Southeast 1/4 of said Section 34; thence North 89°58'34" East, 579.61 feet along the South boundary line of the Southeast 1/4 of said Section 34 to the Southeast corner of said Section 34, also being the Southwest corner of said Section 35; thence North 89°54'26" East, 780.00 feet along the South boundary line of the Southwest 1/4 of said Section 35; thence North 00°09'14" East, 5285.57 feet parallel to the West boundary line of said Section 35 to a point on the North boundary line of said Section 35, also being a point on the South boundary line of said Section 26; thence North 00°15'13" East, 5281.395 feet parallel to the West boundary line of said Section 26 to a point on the North boundary line of said Section 26, also being the Southeast corner of said Fox Ridge-Plat One; thence North 89°58'09" West, 780.00 feet along the North boundary line of said Section 26, also being the South boundary line of said Fox Ridge-Plat One to the point of beginning. Subject to easements and rights-of-way of record.

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PARCEL 1:

The NW 1/4 of the SE 1/4 of the NE 1/4 of Section 16; and the SW 1/4 of the SE 1/4 of the NE 1/4 of Section 16; and the SE 1/4 of the SE 1/4 of the NE 1/4 of Section 16; all in Township 26 South, Range 20 East, Pasco County, Florida.

PARCEL 2:

The NE 1/4 of the SE 1/4 of the NE 1/4 of Section 16, Township 26 South, Range 20 East, Paco County, Florida.

PARCEL 3:

All that part of the SW 1/4 of the NW 1/4 lying North and West of graded road in Section 15, Township 26 South, Range 20 East, Pasco County, Florida.

PARCEL 1:

A tract of land lying in Section 10, Township 26 South, Range 20 East, Pasco County, State of Florida, and being more particularly described as follows: Commence at the S.W. corner of said Section 10 and run N. 89°30'34" E., along the South boundary line of said Section 10, a distance of 2530.60 feet to a point; leaving said South boundary line, run N. 0°23'46" E., a distance of 57.21 feet to the Point of Beginning; thence continue along the previous course, a distance of 558.99 feet to a point intersecting the Southerly right-of-way line of S.R. No. 54 (100' R/W); thence run S. 64°22'47" E., along the aforementioned right-of-way, a distance of 550.0 feet to a point; leaving said right-of-way, run S. 0°23'46" W., a distance of 316.50 feet to a point; thence run S. 89°30'34" W., a distance of 497.71 feet to the Point of Beginning.

PARCEL 2:

A tract of land lying in Section 10 and Section 15, Township 26 South, Range 20 East, Pasco County, Florida, and being more particularly described as follows: Commence at the S.W. corner of said Section 10 and run N. 89°30'34" E., along the South boundary line of said Section 10, a distance of 2530.60 feet to a point; leaving said South boundary line, run N. 0°23'46" E., a distance of 57.21 feet to the Point of Beginning; thence run N. 89°30'34" E., a distance of 497.71 feet to a point; thence run S. 0°23'46" W., a distance of 875.21 feet to a point; thence run S. 89°30'34" W., a distance of 497.71 feet to a point; thence run N. 0°23'46" E., a distance of 875.21 feet to the Point of Beginning.

Containing 2149.990 acres more or less.

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TOGETHER WITH:

IN TOWNSHIP 26 SOUTH, RANGE 20 EAST, PASCO COUNTY, FLORIDA:

Section 33: The SW ¼ of SE ¼, and the E ½ of SE ¼ of SE ¼, and the triangular SE ½ of SE ¼ of NE ¼ of SW ¼ and the triangular SW ½ of S½ of NW ¼ of SE ¼ and that part of the SE ¼ of SE ¼ lying South of the road.

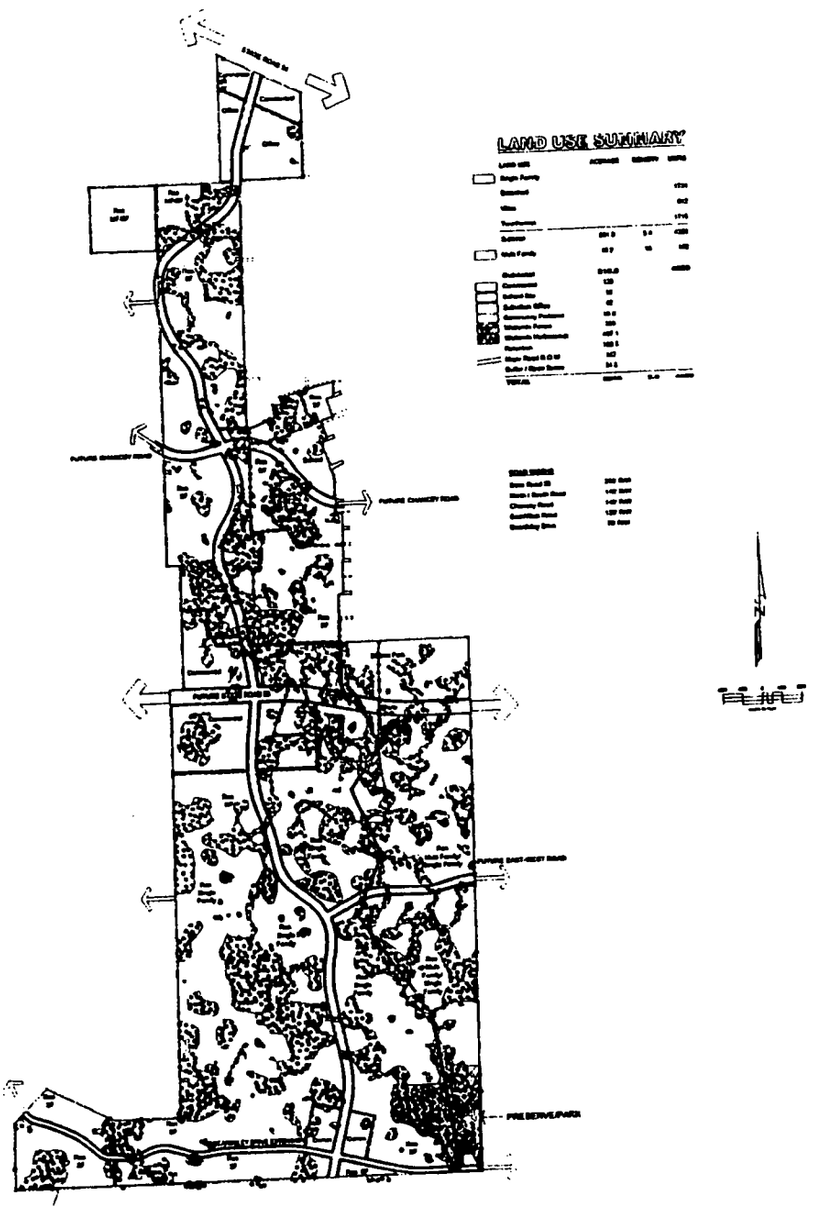
Section 34: That part of the S ½ lying South of the road.
Containing 118 acres, more or less.

EXHIBIT "A"
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EXHIBIT B

Map-H

EXHIBIT "B"



MEADOW POINTE III & IV
(f/k/a WESLEY CHAPEL LAKES)

MASTER SITE PLAN

MAP
H

HEIDT & ASSOCIATES, Inc.
Tampa ◆ Fort Myers